



File No.: EXP202404452

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on March 4, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Erasure against PORSCHE IBÉRICA S.A. (hereinafter, the respondent) without their request receiving the legally established response.

The complaint is made due to the incomplete attention by the respondent to the request made by the complainant exercising the right to erasure of their personal data.

The complainant states that they are the owner of a vehicle of the brand of the respondent and that, on January 22, 2024, they received an advertising email from the respondent, after which they sent a request for the erasure of their data on January 23, 2024, receiving another advertising email on February 21, 2024, for which they reiterated their request via email on the same date.

On February 22, 2024, they received another email from the respondent requesting the submission of information regarding their postal address, vehicle ID, chassis number, and documentation proving vehicle ownership, to which the complainant responded via email dated February 23, 2024, indicating their name and surname, identity document number, postal address, phone number, and the VIN of their vehicle.

On February 26, 2024, they received an email from the respondent requesting a copy of their ID to process their request, to which the complainant replied via email dated February 26, 2024, indicating that the submission of such a copy was not necessary and attaching an image regarding this, as indicated by the Spanish Data Protection Agency on its website.

On February 26, 2024, they received a response indicating that they were erasing data related to name, surname, date of birth, mobile phone, and postal address, while retaining the information regarding their email address.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month.

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actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: The outcome of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on June 4, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint filed for processing.

The aforementioned agreement granted the responding party a hearing procedure, so that within a period of fifteen working days, it could present the allegations it deemed appropriate, summarizing, in essence, the following allegations:

“To be in a position to comply with the provisions of Article 17 of Regulation (EU) 2018/858 of the European Parliament and of the Council, of May 30, 2018, on the approval and market surveillance of motor vehicles and their trailers and of the systems, components, and independent technical units intended for such vehicles, which amends Regulations (EC) 715/2007 and (EC) 595/2009 and repeals Directive 2007/46/EC (“Regulation (EU) 2018/858 on Approvals”).

In particular, Porsche seeks, in addition to fulfilling its legal obligations (set forth in Regulation (EU) 2018/858 on Approvals and in RD 1801/2003 and subsequently in Regulation (EU) 2023/988), a

legitimate interest, consisting of protecting consumer safety and effectively fulfilling its legal obligations, as well as safeguarding the reputation of its brand and mitigating any damages it may suffer as a result of security failures in its products.

When determining whether Porsche's legitimate interest prevails over the interests or the fundamental rights and freedoms of the Claimant, we must consider that it is not only pursuing a benefit for Porsche, but that, in cases where relevant non-compliance is detected, it would also serve the interests of the interested party and third parties (other occupants of the vehicles), who could take the necessary precautions before continuing to use the vehicle or its systems, in addition to exercising their rights as consumers. Therefore, we consider that there is not only a prevailing legitimate interest, but that it is an urgent legitimate interest, despite the intrusion into the privacy that may arise from Porsche maintaining the personal data related to the interested party's email address, which is, in any case, truly minor, if not insignificant. Thus, even if Regulation (EU) 2018/858 on Approvals or RD 1801/2003 do not impose, contrary to what Porsche claims, the obligation to process the Claimant's data, it must at least be considered as a non-binding guideline issued by the competent authorities to ensure the safety of motor vehicles and, therefore, the rights of their owner (including the rights of that owner as a consumer) and those of their occupants.

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Thus, taking into account that (i) there is not only no disproportionate negative impact on the interested party, but no negative impact of any kind (on the contrary, what is achieved is that the interested party accesses relevant information regarding the compliance or safety of their vehicle or its components without delay, so that they can take measures to correct these situations and exercise their rights as a consumer, as well as, if deemed appropriate, make informed decisions regarding their safety and that of the occupants of their vehicle), and that (ii) Porsche has information management systems that allow for the adequate protection of the personal data it maintains in its systems (including access controls based on the need to know), Porsche considers that its legitimate interest in retaining and processing the personal data of the Claimant must prevail over their right to erasure.

From the above, a clear legal obligation of Porsche is deduced to contact its customers in the event that it considers or has reasons to believe, based on the information in its possession, that a product it has introduced into the market is a dangerous product.”

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claiming party, so that, within a period of fifteen working days, they may formulate the allegations they deem appropriate, summarizing, in essence, the following allegations:

“I greatly appreciate the positive impact that the maintenance of my email address could have and at the same time the legitimate interest of Porsche, and others such as my ID number and chassis number which are not mentioned in any section of the extensive literature of the allegations, but the assumptions of ‘relevant information regarding the compliance or safety of their vehicle or its components without delay so that they can take measures to correct these situations and exercise their rights as a consumer, as well as, if deemed appropriate, make informed decisions regarding their safety and that of the occupants of their vehicle,’ taking into account that the vehicle was not imported by Porsche Ibérica, S.A. to Spain, but was sold by the parent company Porsche in Germany in 1979, it seems that the reasons for retaining the pending personal data had another purpose. That supposed positive impact will never happen since this vehicle, which was originally sold in 1979 in Germany, is beyond any claim or information regarding compliance with safety requirements.

Are they going to withdraw the unsafe 1979 Porsche 928s from the market or make the necessary corrections to avoid risks, and even recover such products from consumers, when they discover or have sufficient indications that they have placed products on the market that present risks incompatible with the general duty of safety? The Porsche 928 ceased production in 1995.”

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on June 4, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, which shall be...

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obliged to erase personal data without undue delay when any of the following circumstances occur:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of its application, shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replicas of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

During the processing of this procedure, the respondent entity has responded to this Agency, but does not demonstrate having addressed the erasure of all the data requested by the complainant. The respondent has erased all personal data of the complainant except for the email address, justifying the denial based on Article 17.1 of Regulation (EU) 2018/558 of the European Parliament and of the

Council of May 30, 2018.

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The respondent states that its decision to retain the personal data of the email address of the claimant is based on Article 17.1 of Regulation (EU) 2018/858 of the European Parliament and of the Council of May 30, 2018, on the approval and market surveillance of motor vehicles and their trailers, and of the systems, components, and independent technical units intended for such vehicles. In order to comply with the obligations imposed by this article, the respondent, as the importer of the vehicle owned by the claimant, must be able to retain contact information to communicate with the claimant and inform them of any incidents affecting the safety of their vehicle. This data will be retained solely for that purpose. However, once the article invoked by the respondent has been analyzed, it is not established that, in order to fulfill the obligation imposed on vehicle importers, personal data of the buyers must be retained. This is an interpretation made by the respondent that leads them to retain a personal data of the claimant even against the claimant's will.

Nevertheless, for the processing of personal data to be lawful for the fulfillment of a legal obligation, it must be established in a norm of Union Law or of the member states. Furthermore, such legal basis may contain, as regulated by Article 6.3.b) of the GDPR, among others: the types of data subject to processing. As indicated in Article 17.3 of the European Regulation invoked by the respondent, it does not establish an obligation to process personal data but rather obligations of another nature.

Also, Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD) in its Article 8 on Processing of data by legal obligation, public interest, or exercise of public powers, states verbatim:

“1. The processing of personal data may only be considered based on the fulfillment of a legal obligation enforceable against the controller, as provided in Article 6.1.c) of Regulation (EU) 2016/679, when such is provided by a norm of European Union Law or a norm with the rank of law, which may determine the general conditions of processing and the types of data subject to it as well as the transfers that may arise as a consequence of the fulfillment of the legal obligation. Such norm may also impose special conditions on the processing, such as the adoption of additional security measures or others established in Chapter IV of Regulation (EU) 2016/679.

2. The processing of personal data may only be considered based on the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the controller, as provided in Article 6.1 e) of Regulation (EU) 2016/679, when it derives from a competence attributed by a norm with the rank of law.”

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Therefore, the respondent is obliged to delete the email address of the claimant, as there is no legal obligation established in a Union law or in the laws of the member states.

In accordance with data protection regulations, deletion must be carried out by blocking; therefore, the deletion of personal data, having ceased to be necessary for the purpose that justified its processing, must be performed by means of blocking the personal data subject to processing under the terms of Article 32 of the LOPDGDD.

The blocked data will be available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly data protection authorities, for the requirements of possible liabilities arising from the processing and for the statute of limitations of these.

Thus, it cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the submission of allegations in the present procedure, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow the request to be overlooked as if it had not been raised, leaving it without the response that those responsible must issue, even in the event that there are no data in the files or even in those cases where it does not meet the established requirements, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, where appropriate, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that initiated the present procedure.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge PORSCHE IBÉRICA S.A. with NIF A28672103, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right in accordance with what is established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to PORSCHE IBÉRICA S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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